

ORDER SHEET
IN THE LAHORE HIGH COURT,
LAHORE.

JUDICIAL DEPARTMENT
Crl. Misc. No. 15581-B of 2025

Muhammad Mudasir Syed. **Versus** The State and another.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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21.04.2025. Mian Sohail Anwar, Advocate for the petitioner.
 Mr. Amjad Javed, Deputy Prosecutor General
 alongwith Nabi Ahmad, S.I.
 Ch. Muhammad Imran Rafique, Advocate for the
 complainant.

The petitioner (Muhammad Mudasir Syed),
being arrayed as an accused in case F.I.R. No. 162 of
2025, dated 24.01.2025 registered with police Station
Nau Lakha, District Lahore for offence under Section
489-F PPC, seeks his post arrest bail, after the same was
refused by the court of learned Additional Sessions
Judge, Lahore, vide order dated 07.03.2025.

2. According to the F.I.R. Shabbir
(complainant) was running business in the name and
style “Shabbir Engineering” and having friendship with
Shakil Ahmad, who is a banker. Shakeel Ahmad
introduced Muhammad Mudasir Syed (petitioner) to
complainant as a banker. Muhammad Mudasir Syed
stated that he may get approve loan of three crore from
Alflah Bank for improving his business and obtained
Rs.1,204,600/- as expenses for documentation. After
some time petitioner handed over a bogus letter of Bank
Alflah valuing 2.5 crore, which on confirmation was
found to be bogus. When the complainant demanded his
amount back, the petitioner issued a cheque No. CA-
010058586, dated 05.04.2024 of Rs.1,204,600/-, which
on presentation was dishonoured on account of dormant
account.

3. After hearing learned counsel for the petitioner, learned counsel for complainant, learned Deputy District Public Prosecutor and perusal of record it was observed by me that petitioner (Muhammad Mudasir Syed) received Rs.1,204,600/- from the complainant on the pretext that he would get a loan of rupees three crore approved from his Bank Alflah and thereafter handed over to him a forged and bogus letter of Bank Alflah of an amount of 2.5 crore. Issuance of cheque and dishonourment of the same was a fact, which could not be dislodged. Petitioner claimed that his old cheque was already lying with his friend Shakeel which the complainant misused in connivance with his friend Shakeel, but failed to substantiate the above plea with cogent material. Prima facie involvement of petitioner in the crime could not be ruled out. There was nothing to suggest that case was requiring further inquiry.

4. I am fully conscious of the fact that offence under Section 489-F PPC was not attracting the prohibitory clause contained under Section 497 of Cr.P.C and bail is normally allowed in such like cases, but at the same time the Honourable Superior Courts were pleased to hold in plethora of the judgments that it is not a rule of universal application that bail should be allowed in each and every case not falling within prohibitory clause. Each case has to be seen in the light of its own peculiar circumstances. The Court may refuse the bail to an accused even in the cases not falling within the embargo, if exceptional circumstances of the case so require. If any reference in this regard is required that can be had from 'Shamil Ahmad v. The State' (2009 SCMR 174), 'Amir Sheikh v. The State' (2012 YLR 2136). Petitioner deprived the complainant of an amount of Rs.1,204,600/- showing him rose garden that he shall

get loan of 3 crore approved for him from the Bank and thereafter handed over to him a forged and bogus letter of the bank and on failure issued the cheque. Modus operandi adopted by the accused/petitioner was meaningful and a question mark, which does not permit me to exercise my discretion in his favour.

5. For the reasons recorded supra, the present petition has no force, hence, **dismissed**.

(TANVEER AHMAD SHEIKH)
JUDGE

Approved for reporting.

JUDGE

Shahzad Ahmad Nasir